

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2026CLCL061416: WELLS FARGO BANK, N.A. vs LIDIA H CARRANZA

09/17/2026 in Department 21

Motion to Deem Facts Admitted and of Nonappearance

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.) If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Motion by Plaintiff Wells Fargo Bank, N.A. (“Plaintiff”) to deem admitted against Defendant Lidia H Carranza (“Defendant”) matters in Requests for Admission (“RFA”).

Tentative Ruling: Plaintiff’s motion to deem admitted the truth of matters in the RFA is GRANTED, unless Defendant serves responses to the RFA before the hearing.

Counsel for Plaintiff is to give notice within two (2) court days.

Background: This is a limited civil action to collect a debt. Plaintiff Wells Fargo Bank, N.A. (“Plaintiff”) filed the complaint against Defendant Lidia H Carranza (“Defendant”) on 2/17/26, asserting a single cause of action for breach of contract. The contract attached to the complaint shows that the debt arises from use of a credit card.

Defendant has retained counsel and filed an answer. On 5/6/26, Plaintiff served by mail the RFA on Defendant. Defendant has not served responses. Plaintiff filed this motion on 7/17/26.

Discussion: Here, Plaintiff has shown that the responses are past due pursuant to CCP §§ 2033.250(a) and 2033.280. To date, Defendant has not served responses.

Since Defendant has not served responses, an order deeming admitted the matters in the RFA is warranted, unless Defendant serves responses before the hearing.

Accordingly, Plaintiff's motion to deem admitted the truth of matters in the RFA is GRANTED, unless Defendant serves responses to the RFA before the hearing.